

STATE OF INDIANA COUNTY OF VANDERBURGH

IN THE VANDERBURGH SUPERIOR COURT CAUSE NO. 82D01-2512-CT-008032

THE ESTATE OF LEONARDO (“LEO”)

ESLINGER, et al.,

Plaintiffs,

v.

Related Case Numbers:

**26S-SJ-00061 (Supreme Court Special
Judge Appointment)**

**14D01-2603-CB-000248 (Change of
Venue from Daviess)**

**14D01-2603-CB-000258 (Change of
Venue from Daviess)**

JILLIAN N. KRATOCHVIL, and STOLL,

KEENON, OGDEN, PLLC,

Defendants.

**MEMORANDUM C: IN SUPPORT OF MOTION TO VACATE ORDER DENYING
PLAINTIFFS’ MOTION FOR APPOINTMENT OF COUNSEL**

Plaintiffs, The Estate of Leonardo Eslinger, et al. (“Plaintiffs”), respectfully submit this memorandum in support of their Omnibus Motion to Vacate the Court’s May 6, 2026 Order Denying Plaintiffs’ Motion for Appointment of Counsel.

INTRODUCTION

This Court’s May 6, 2026 Order has placed the Estate of Leonardo Eslinger in an unconstitutional and legally impossible position. Indiana law is unequivocally clear that a non-attorney personal representative cannot represent the legal interests of an estate in court. By denying the indigent Estate’s request for appointed counsel, the Court has not merely

disadvantaged the Estate; it has erected an insurmountable legal barrier that prevents the Estate from prosecuting its claims, responding to dispositive motions, or otherwise protecting its interests. This procedural paralysis violates the Open Courts Clause of the Indiana Constitution, the Due Process Clause of the Fourteenth Amendment, and ignores the “exceptional circumstances” of this case that mandate the appointment of counsel under Indiana law.

ARGUMENT

I. The Court’s Order Creates a Legal and Constitutional Crisis: The Estate Cannot Lawfully Proceed Pro Se.

The cornerstone of this motion is a bedrock principle of Indiana law: a non-attorney may not appear in court on behalf of another entity, including an estate. The Indiana Supreme Court has held that “a person who is not an attorney may not appear on behalf of a separate legal entity such as a corporation or, as in the present case, a decedent’s estate.” *State ex rel. Western Parks, Inc. v. Bartholomew Cty. Court*, 383 N.E.2d 290, 293 (Ind. 1978). A personal representative acts in a fiduciary capacity, representing the distinct legal interests of the estate and its beneficiaries, not their own personal interests.

By denying the Motion for Appointment of Counsel, the Court has ordered the Estate to do something the law forbids. The practical effect is a default judgment in waiting. The Estate is legally incapable of filing a response to the pending Motion to Dismiss, conducting discovery, or presenting its case at trial. This complete procedural bar is a violation of fundamental due process. It effectively closes the courthouse doors to the Estate, violating Article 1, Section 12 of the Indiana Constitution, which guarantees that “all courts shall be open; and every person, for injury done to him...shall have remedy by due course of law.”

II. This Case Presents “Exceptional Circumstances” Mandating the Appointment of Counsel.

The Indiana Supreme Court in *Sholes v. Sholes*, 760 N.E.2d 156 (Ind. 2001), held that Indiana Code § 34-10-1-2 imposes a **mandatory duty** on courts to appoint counsel for indigent civil litigants under “exceptional circumstances.” The factors for determining “exceptional circumstances” include the complexity of the legal issues and the applicant’s ability to present their claims without an attorney. This case is the epitome of exceptional.

A. The Sheer Complexity of the Legal and Factual Issues Requires Counsel.

It is fundamentally unjust to require pro se litigants—one of whom is legally barred from even participating—to litigate a case of this magnitude against a sitting judge and a major law firm. The claims involve: * **Wrongful Death Claims** complicated by an unreleased official cause of death. * A novel “**oath gap**” **immunity defense**, arguing quasi-judicial immunity did not attach to Defendant Kratochvil before she took her judicial oath of office. *

Fraudulent Concealment Claims necessary to toll the statute of limitations, requiring proof of affirmative acts of concealment by Defendants. * **Federal Civil Rights Claims** under 42 U.S.C. § 1983, which involve unique pleading standards and immunity doctrines. * Complex immunity doctrines including **quasi-judicial and de facto judicial immunity**. * The procedural and ethical complexities of suing **sophisticated defendants**, including a sitting judge and a large, powerful law firm.

B. Plaintiffs’ Inability to Obtain Counsel is Due to Systemic Barriers, Not Lack of Diligence.

The nature of this case has created insurmountable barriers to retaining counsel. Plaintiffs have diligently sought representation, only to be refused because: 1. **Systemic Conflict of Interest:** Every sitting judge in Vanderburgh County recused themselves from the underlying matter, citing conflicts with Defendant Kratochvil and Defendant SKO. This judicial-level conflict has had a chilling effect, as no local attorney has been willing to take a case against a sitting judge and a powerful firm. 2. **Prohibitive Retainer:** The few out-of-area firms willing

to consider the case demanded retainers upwards of **\$30,000**, an impossible sum for the Plaintiffs. 3. **Uncertain Cause of Death:** The lack of an official death certificate has made contingency-fee counsel unwilling to invest the necessary resources in the case.

III. The Denial Was Made Without a Hearing, Denying Plaintiffs the Opportunity to Make a Full Record.

The Court denied the motion for counsel without the benefit of the scheduled June 5, 2026 hearing. This prevented Plaintiffs from presenting evidence and testimony regarding their indigency, their diligent but unsuccessful search for counsel, and the specific complexities of the case that necessitate legal representation. A ruling on such a critical, fact-intensive motion without an evidentiary hearing is itself a denial of due process.

CONCLUSION

The May 6 Order denying counsel has created a legal impossibility, forcing a non-attorney to either violate the law by representing an estate or abandon the estate's claims entirely. This violates state and federal constitutional rights and ignores the mandatory duty to appoint counsel in exceptional circumstances. For the foregoing reasons, the Court's Order of May 6, 2026, denying the Motion for Appointment of Counsel should be vacated, and the motion should be granted.